

25STCV34274 25STCV34274

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-26

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C311%2C08%2F26%2F2026

Source SHA-256: c6c0e6069995bdb49a457f961a365c366a72cbe94ac0670fb8d9f31d3bfeca19

Case Number: 25STCV34274 Hearing Date: August 26, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV34274

BRISTOL

FARMS, A CALIFORNIA CORPORATION vs EXCLUSIVE IMPORTS, INC., A CALIFORNIA

CORPORATION, et al.

August

26, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF BRISTOL FARMS' MOTION TO COMPEL RESPONSES TO FORM

INTERROGATORIES—GENERAL, SET ONE, FROM DEFENDANT EXCLUSIVE IMPORTS, INC.;

REQUEST FOR MONETARY SANCTIONS. PLAINTIFF

BRISTOL FARMS' MOTION TO COMPEL RESPONSES TO SPECIAL INTERROGATORIES, SET ONE,

FROM DEFENDANT EXCLUSIVE IMPORTS, INC.; REQUEST FOR MONETARY SANCTIONS. PLAINTIFF BRISTOL FARMS' MOTION TO COMPEL

RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS, SET ONE, FROM DEFENDANT EXCLUSIVE

IMPORTS, INC.; REQUEST FOR MONETARY SANCTIONS.

PLAINTIFF BRISTOL FARMS' MOTION FOR ORDER THAT THE TRUTH OF MATTERS

SPECIFIED IN REQUESTS FOR ADMISSION, SET ONE, BE DEEMED ADMITTED AGAINST

DEFENDANT EXCLUSIVE IMPORTS, INC.; REQUEST FOR MANDATORY MONETARY SANCTIONS.

RULING:

The Court grants all four

unopposed Motions, as prayed.

On or before September 25,

2026, Defendant EXCLUSIVE IMPORTS, INC. shall serve initial responses and

produce documents, without objections, and in full compliance with the

California Discovery Act (Code Civ. Proc. § 2016.010 et seq.), as to Plaintiff

BRISTOL FARMS' Form Interrogatories, Special Interrogatories, and Requests for Production of Documents. Additionally, the Court deems admitted the genuineness of any documents and the truth of any matters specified in the Requests for Admission.

On or before that same

date, Defendant EXCLUSIVE IMPORTS, INC., and counsel Philip Boesch, jointly and

severally, shall pay discovery sanctions in the total sum of \$2,408.24 to Plaintiff

BRISTOL FARMS, the Court finding the absence of substantial justification.

(E.g., Code Civ. Proc., § 2023.030.)

Plaintiff to give notice.

I.

BACKGROUND

On November 21, 2025, BRISTOL

FARMS (Plaintiff) filed a Complaint against EXCLUSIVE IMPORTS, INC. and MOZAFAR

TERHANI (Defendants), identifying Causes of Action for:

1.

BREACH OF CONTRACT;

2.

BREACH OF CONTRACT;

3.

RESTITUTION/UNJUST ENRICHMENT;

4.

MONEY HAD AND RECEIVED;

5.

ACCOUNT STATED; and,

6.

OPEN BOOK ACCOUNT.

Plaintiff alleges that,

in breach of a written contract, Defendants failed to refund Plaintiff's

payment with interest, after Defendants reportedly were unable to import and

deliver the goods.

On July 24, 2026, Plaintiff

filed four discovery motions following Defendant EXCLUSIVE IMPORTS, INC.'s

failures to serve any responses. The motions include requests for an identical sum

of sanctions (\$602.06).

Defendant has filed no

Opposition to these motions.

II.

LEGAL STANDARD

A motion to compel initial discovery responses need only

show that discovery was properly served on the opposing party, the time to respond expired, and no response was served. (Leach v. Superior Court (1980) 111 Cal.App.3d 902, 905-906; Code Civ. Proc., §§ 2030.290 [compelling initial interrogatory responses], 2031.300 [compelling initial document requests].) A motion to compel initial discovery responses need not show good cause, meeting and conferring, or timely filing, and need not be accompanied by a separate statement. (Sinaiko Healthcare Consulting, Inc. v. Pac. Healthcare Consultants (2007) 148 Cal.App.4th 390, 404.)

A motion to deem admitted

requests for admissions lies based upon a showing of failure to respond timely, and no meet and confer is required. (Code Civ. Proc., § 2033.280, subd. (b); Demyer v. Costa Mesa Mobile Home Estates (1995) 36 Cal.App.4th 393, 395, disapproved

on other grounds by Wilcox v.

Birtwhistle (1999) 21 Cal.4th 973, 983.) Requests for admissions must be

deemed admitted where no responses in substantial compliance were served before

the hearing. (Code Civ. Proc., § 2033.280, subd. (c).)

Monetary

discovery sanctions are mandatory as to parties losing discovery motions,

unless courts find substantial justification or other injustice. (Deck v. Devs. Inv. Co. (2023) 89 Cal.App.5th 808, 830.) “[T]he

phrase “substantial justification” has been understood to mean that a

justification is clearly reasonable because it is well grounded in both law and

fact.” (Kwan Software Engineering, Inc. v. Hennings (2020) 58

Cal.App.5th 57, 75.) “If the party seeking a monetary sanction meets its burden

of proof, the burden shifts to the opposing party attempting to avoid a

monetary sanction to show that it acted with ‘substantial justification.’” (Doe v. U.S. Swimming, Inc. (2011) 200

Cal.App.4th 1424, 1435.)

“Under Code of Civil

Procedure section 2033.280, it is mandatory that the court impose a monetary

sanction on the party or attorney whose failure to serve a timely response to a

request for admission necessitates a motion to compel responses....” (Stover v. Bruntz (2017) 12 Cal.App.5th

19, 31–32. Accord, Appleton v. Superior

Court (1988) 206 Cal.App.3d 632, 635.)

III.

ANALYSIS

Plaintiff moves to compel

Defendant’s initial discovery responses and to obtain an Order deeming admitted

Requests for Admissions. Plaintiff further requests monetary sanctions against

Defendant and counsel.

The failure to file a

proper and timely opposition in trial court creates a waiver of the issues on

any appeal. (Bell v. Am. Title Ins. Co.

(1991) 226 Cal.App.3d 1589, 1602; Cabrini

Villas Homeowners Assn. v. Haghverdian (2003) 111 Cal.App.4th 683, 693

[appellate court will not consider any erroneous rulings where an objection

could have been made].) "A failure to oppose a motion may be deemed a consent

to the granting of the motion." (Cal. Rules of Court, rule 8.54(c).)

The Motions supportively

show duly served discovery requests and Defendant's failures to timely respond,

whereas Defendant filed no Opposition to show any reason to deny.

IV.

CONCLUSION

Therefore, the Court grants

all four Motions, as prayed.